



MEMO

TO: Honorable Mayor and Members of City Council

FROM: Charles W. Bloom, AICP, Planning and Development Director

SUBJECT: Report detailing Planning and Development Department findings in accordance with City Council Resolution No. 6489 regarding recommended amendments to the UDC that better balance smaller lot development and housing affordability considerations.

DATE: November 24, 2025

On November 13, 2025, Planning and Development Department staff hosted a meeting with stakeholders regarding trees in response to Resolution No. 6489 directing the Planning Department to review the Unified Development Code and provide a recommendation to the Governing Body regarding the allowance of a greater variety of trees and smaller tree sizes in new residential developments. Specifically, the resolution directed the Planning and Development Department to recommend amendments to the UDC that better balance the City's long-term tree canopy and environmental goals with the smaller lot development and housing affordability considerations.

Eleven stakeholders and four Planning and Development Department staff attended the meeting. Additional realtors, representatives from Black Hills Energy, and a representative from the Laramie County Conservation District were also invited but were unable to attend. Mr. Hamilton had to depart early and did not participate in the entirety of the final discussion. Attendees were:

Jeremy Hamilton, Realtor
Jason Stephens, Gateway
Construction
Lee Martin, Landscape Architect
Jacob Mares, State Forestry,
Jackie Suntrip, Rooted in Cheyenne
Ryan Magrum, owner, Magrum Tree
Service
Mark Ellison, City Forester

Krista Gallardo, Big Bird Landscaping
John Sayers, Monument Home Builders
Jeanie Anderson-Shrednik, Parks and
Greenway Planner (staff)
Bryce Dorr, Board of Public Utilities
Connor White, Planner II (staff)
Erin Fagan, Planner II (staff)
Charles Bloom, Planning and
Development Director (staff)

The group agreed that the current Unified Development Code is workable and adequate for existing needs. Developers noted that small lots, small yards and planted areas, limited irrigated areas, and conflicts with water, sewer, shallow franchise utility lines, and utility boxes can make tree placement challenging, but not impossible. No concerns were noted based on the required street tree (canopy tree) compared to an ornamental tree as both can grow on a small lot and in similar soils and it was recognized that canopy trees may prove to be better for planting because they can adapt to their environment more easily and be less intrusive on nearby sidewalks and interfere less with nearby structures because they grow up, not out. Administrative options to allow for alternative tree planting in cases of overhead powerlines proved to be adequate and are accepted by utility companies with overhead lines.

It was also noted that that sidewalk locations and construction timing affect where and when trees can be planted but do not prove to be an obstacle to street tree placement. Street tree installation cost was not identified as a barrier to housing affordability as the cost for tree installation is less than \$1,000 which equates to less than 1/3 of 1% of the construction cost of a typical home constructed with 1,600 finished square feet of floor area.

There was also consensus that understanding of street tree planting and maintenance requirements could be improved for both the public and internal stakeholders. Opportunities for improvement include public education, stronger interdepartmental communication, better-defined expectations for developers, and enhanced resource materials. Recommended outreach is summarized below.

Public Education

There is a need for improved outreach on acceptable tree-related practices – both for residents and for the development community. This includes clear guidance on proper winter maintenance and winter watering, expectations for developers during construction, situations where flexibility can occur (overhead power lines or project completion in the winter) and reminders for builders as they approach project completion. Expectations for developers include ensuring that landscape plan submittals are provided in conjunction Engineering Plan Review submittals for new streets. Communicating these expectations early and consistently will improve understanding and compliance.

Interdepartmental Coordination

Strengthen collaboration with Engineering and the Board of Public Utilities to ensure consistent enforcement of code requirements including submittal of tree planting plans with civil engineering plans (as presently required) and better coordinate installation of utilities during construction.



Inclement Weather Protocols

Establish clear procedures outlining acceptable alternatives when weather conditions or other scenarios prevent tree planting, including how financial securities will be managed in such cases to not delay issuance of certificates of occupancy.

Resource Materials

Develop comprehensive informational pamphlets containing examples of appropriate tree species, spacing guidelines, photographs, and other relevant reference materials. These materials should expand beyond the names of the tree but should provide more information so the person planting the tree is aware of their mature height and spread and necessary separation requirements. The informational material should, when practical, include visual images.

Recommendation

The Planning and Development Department recommends that no changes be made to the Unified Development Code in response to Resolution No. 6489. Staff does note that informational materials should be provided and more easily accessible to builders, developers, homeowners, and the public to provide more education on tree planting and maintenance expectations and that interdepartmental communication be enhanced and resource material be more clear and more easily accessible to the public.

Attachment

Resolution No. 6489

RESOLUTION NO. 6489

ENTITLED: "A RESOLUTION DIRECTING THE PLANNING DEPARTMENT TO REVIEW THE UNIFIED DEVELOPMENT CODE AND PROVIDE A RECOMMENDATION TO THE GOVERNING BODY REGARDING THE ALLOWANCE OF A GREATER VARIETY OF TREES AND SMALLER TREE SIZES IN NEW RESIDENTIAL DEVELOPMENTS."

WHEREAS, the City of Cheyenne has adopted a Unified Development Code (UDC) to establish standards for land development, including requirements for tree planting in new residential projects;

WHEREAS, the City's current UDC provisions governing plantings prioritizes larger-maturing shade trees as part of its urban forestry goals, including development of a long-term community tree canopy;

WHEREAS, the City Council has received correspondence from members of the development community expressing concern that the current UDC provisions do not adequately account for smaller lot sizes, easements, or other site constraints that may make planting larger-maturing trees impractical;

WHEREAS, the correspondence suggests that allowing for certain smaller-maturing ornamental and fruiting tree varieties could provide viable alternatives that balance neighborhood aesthetics, environmental benefits, and infrastructure protection, with the practical needs of smaller lot development and housing affordability;

WHEREAS, the Urban Forestry Division has noted the significant long-term benefits of shade trees to the community, while recognizing that tree requirements must also be practical and adaptable to varied lot sizes and development conditions; and

WHEREAS, the Governing Body finds it appropriate to further study this issue to ensure the UDC achieves the intended goals of neighborhood livability, urban canopy growth, and infrastructure protection, while also providing flexibility for smaller lot developments.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the Planning Department, in consultation with the Urban Forestry Division, and relevant stakeholders, is hereby directed to review the Unified Development Code's plantings requirements and evaluate the feasibility of allowing a greater variety of trees, including smaller-maturing species, to be used in new residential developments where lot size, easements, or other conditions limit the practicality of larger shade trees;

BE IT FURTHER RESOLVED, that the Planning Department shall submit to the Governing Body a written recommendation for potential amendments to the UDC that better balance the City's long-term tree canopy and environmental goals with the practical needs of smaller lot development and housing affordability considerations; and

BE IT FINALLY RESOLVED, that the recommendation shall be presented to the Governing Body within forty-five (45) days of adoption of this resolution.

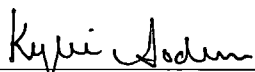
PRESENTED, READ AND ADOPTED THIS 13th DAY OF October, 2025.



Patrick Collins, Mayor

(SEAL)

ATTEST:



Kylie Soden, City Clerk